



CHAPTER 70

An Act to make provision with respect to slaughterhouses and knackers' yards and the slaughter of animals; and for purposes connected therewith.

[1st August, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Provision of slaughterhouse facilities

1.—(1) Section sixty-four of the principal Act (which provides that except with the consent of the Minister a slaughterhouse licence shall not be granted or renewed in respect of any premises not previously used as a slaughterhouse) is hereby repealed.

Licensing of slaughterhouses—general.

(2) Where an application for the grant or renewal of a slaughterhouse licence is made to a local authority in respect of any premises to which, if they were used as a slaughterhouse, both construction regulations made under section thirteen of the principal Act and construction regulations made under section two of the Act of 1954, being in each case regulations made after the passing of this Act, would apply, then—

- (a) subject to subsections (3) and (4) of section sixty-six of the principal Act (which provide for appeals), the authority shall not grant or renew the licence unless they are satisfied that all construction regulations for the time being in force, being regulations made under the said section thirteen or under the said section two, are, or

by the date on which the licence or renewed licence comes into force will be, complied with in respect of the premises;

(b) without prejudice to the foregoing paragraph, the authority shall not refuse the application unless—

(i) they are not satisfied, on the premises being represented by the applicant as ready for use as a slaughterhouse under the licence or renewed licence, that all the requirements of all regulations with respect to slaughterhouses for the time being in force under the said section thirteen, of all construction regulations for the time being in force under the said section two and of all byelaws, if any, made by the authority and for the time being in force under section sixty-eight of the principal Act are, or within a reasonable time will be, complied with in respect of the premises; or

(ii) they are required to refuse the application by section two, four, five or six of this Act; or

(iii) in a case to which subsection (4) of section two of this Act applies, the Minister has consented to the refusal;

and this subsection shall apply in relation to the grant, renewal or refusal of an express authorisation under subsection (3) of section sixty-two of the principal Act for the use of premises for or in connection with the slaughter of horses as it applies to the grant, renewal or refusal of a slaughterhouse licence in respect of those premises; and section sixty-five of the principal Act shall not apply in any case to which this subsection applies.

(3) No resolution under section seventy-six of the principal Act (which confers power on a local authority to restrict by resolution the grant or renewal of slaughterhouse licences where the authority are satisfied that the slaughterhouse facilities available in their district are adequate for the time being) shall be passed by a local authority or approved by the Minister after the passing of this Act, and the Minister shall require a local authority to revoke any resolution for the time being having effect under the said section seventy-six or under section seventy-five of the principal Act (which confers the like power by reason of the provision of slaughterhouse facilities by that or another local authority) if at any time it appears to him—

(a) in the case of a resolution under the said section seventy-six, that the slaughterhouse facilities available in the authority's district do not for the time being include at least one public slaughterhouse which complies with the

following conditions, that is to say, that the providing authority are the occupiers and that facilities for the slaughter of animals at the slaughterhouse, whether by servants of the providing authority or otherwise, are open to all persons requiring them;

- (b) in the case of a resolution under the said section seventy-five, that there is no public slaughterhouse provided by that authority which for the time being complies with the conditions aforesaid or, as the case may be, that the slaughterhouse facilities provided by another authority do not for the time being include at least one public slaughterhouse which complies with those conditions;

and the local authority shall comply with the requirement and, as soon as practicable after the revocation of the resolution, cause notice of the revocation to be published in one or more local newspapers circulating in their district.

(4) Without prejudice to the last foregoing subsection, in the said section seventy-five, for paragraph (b) of subsection (1) (which authorises the passing of a resolution under that section where the local authority are of opinion that slaughterhouse facilities in their district ought to be abolished or reduced having regard to such facilities provided by another authority) there shall be substituted the following paragraph:—

“(b) are of opinion that, having regard to the availability of slaughterhouse facilities provided by another authority, slaughterhouse facilities within their district ought to be abolished or reduced, or ought not to be increased, or are not required”;

and, accordingly, after the word “and”, in the first place where it occurs in the said subsection (1), there shall be inserted the words “any such resolution may also provide”.

(5) The Minister may by regulations—

- (a) require slaughterhouse licences and applications for the grant or renewal of such licences to be in such form and to contain such particulars of all premises to which the licence or application relates as may be prescribed by the regulations;
- (b) require local authorities to keep such records of all slaughterhouse licences granted by them, including the particulars aforesaid, and to furnish the Minister with such information in connection with the grant of slaughterhouse licences, as may be so prescribed;

and each local authority shall make any such records as aforesaid or copies thereof available during reasonable hours at some convenient place or places in their district for inspection by any person without charge.

Licensing of slaughterhouses where local restrictions in force.

2.—(1) Where after the passing of this Act an application for the grant of a new slaughterhouse licence is received by a local authority with respect to whose district there is for the time being in force—

- (a) a resolution having effect under section seventy-five or section seventy-six of the principal Act; or
- (b) a provision of a local Act whereby, notwithstanding the grant of such a licence, the use as a slaughterhouse of the premises to which the application relates would be unlawful,

the three next following subsections shall have effect notwithstanding anything in the resolution or provision in question; and, while any licence granted or renewed in pursuance of those subsections is in force and any terms, conditions or restrictions imposed by or under any local Act are complied with, nothing in any such provision of a local Act as aforesaid shall prevent, or subject any person to any penalty by reason of, the use of those premises as a slaughterhouse or the slaughter of animals on those premises.

(2) Not later than two months after receiving such an application as aforesaid, the local authority shall either—

- (a) serve notice in writing on the applicant that they intend to refuse the application unless before the expiration of the period of twenty-one days commencing with the date of service of the notice he requires the authority in writing to submit the application to the Minister, and that no other appeal will lie against that refusal; or
- (b) if they think fit, themselves submit the application to the Minister;

and where a notice has been served by the authority under paragraph (a) of this subsection and at the expiration of the period referred to in that paragraph the authority have not been required by the applicant to submit the application to the Minister, the authority shall forthwith refuse the application.

(3) Where in pursuance of the last foregoing subsection a local authority are required or determine to submit an application to the Minister, the provisions of the First Schedule to this Act shall have effect, and the Minister—

- (a) if he is not satisfied that the grant of the licence is necessary for the purpose of securing adequate slaughterhouse facilities or expedient for special reasons, shall direct the authority to refuse the application forthwith; or
- (b) if he is satisfied as aforesaid, shall direct that, save as required by section five or section six of this Act, the application shall not be refused unless the authority

are not, in relation to the premises in respect of which the application is made, satisfied as mentioned in paragraph (b) of subsection (2) of section one of this Act or, in a case to which that subsection does not apply, as mentioned in subsection (1) or subsection (2) of section sixty-five of the principal Act,

and the authority shall comply with any direction given under this subsection.

(4) Where in the case of any premises—

- (a) a new slaughterhouse licence in respect thereof has been granted in pursuance of a direction under the last foregoing subsection; or
- (b) those premises have under subsection (3) of the said section seventy-five been exempted from the operation of a resolution having effect under that section; or
- (c) since the passing of such a resolution as aforesaid a slaughterhouse licence in respect of those premises has been granted in the exercise of a power reserved for the local authority under the said subsection (3) as originally enacted,

the local authority shall not refuse any subsequent application for the grant or renewal of a slaughterhouse licence in respect of the same premises (not being an application for the grant of a new slaughterhouse licence) unless—

- (i) the Minister has given his consent in accordance with subsection (7) of this section; or
- (ii) the authority are not, in relation to the premises, satisfied as mentioned in paragraph (b) of the last foregoing subsection; or
- (iii) the authority are required to refuse the application by section five or section six of this Act.

(5) Where any such subsequent application in respect of any premises as is referred to in the last foregoing subsection is refused otherwise than on the grounds specified in paragraph (ii) or (iii) of that subsection, any person having an interest in the premises or in any land held therewith, being an interest of which the value is reduced in consequence of the refusal, shall be entitled to be paid by the authority by way of compensation an amount equal to the reduction; and subsections (3), (4) and (6) of section seventy-eight of the principal Act shall apply for the purposes of compensation under this subsection as if any reference in those subsections to the said section seventy-eight were a reference to this subsection:

Provided that no such amount shall be payable if either—

- (a) a previous application for the grant or renewal of a slaughterhouse licence in respect of those premises has been refused otherwise than on the grounds specified in the said paragraph (ii) or (iii) at a time when the last foregoing subsection or subsection (4) of section seventy-five of the principal Act applied thereto; or
- (b) the use of those premises as a slaughterhouse has previously been terminated by virtue of a resolution under the said section seventy-five or of such a provision of a local Act as is mentioned in the next following subsection.

(6) Where by virtue of any provision of a local Act a local authority have power to terminate the use of any premises as a slaughterhouse without the agreement of the occupier and otherwise than on the grounds of injury or danger to the public health, of nuisance, of the unsuitability of the premises, or of failure to make use of those premises as a slaughterhouse, the authority shall not exercise that power in relation to any premises except with the consent of the Minister given in accordance with the next following subsection; and where that consent is so given, then, notwithstanding anything in that local Act, no other appeal shall lie against the exercise of that power.

(7) On requesting the Minister's consent—

- (a) to the refusal of an application for the grant or renewal of a slaughterhouse licence by virtue of paragraph (i) of subsection (4) of this section; or
- (b) to the exercise in relation to any premises of such a power as is mentioned in the last foregoing subsection,

the local authority shall serve on the applicant, or, as the case may be, on the person who holds a slaughterhouse licence in respect of those premises, notice in writing that the request has been made and of the reasons therefor, and that he may make representations to the Minister with respect thereto before the expiration of the period of twenty-one days commencing with the date of service of the notice; and the Minister, if, after considering any representation so made to him, he is both—

- (i) satisfied that the grant or renewal of that licence, or, as the case may be, the continued use of those premises as a slaughterhouse, is unnecessary for the purpose of securing adequate slaughterhouse facilities; and
- (ii) not satisfied that that grant, renewal or continued use is expedient for special reasons,

shall give, and in any other case shall refuse, his consent.

(8) Where a local authority such as is mentioned in subsection (1) of this section receive an application for the grant or renewal of a slaughterhouse licence in respect of any premises which is neither an application for the grant of a new slaughterhouse licence nor an application to which subsection (4) of this section applies, the authority shall refuse the application forthwith if—

- (a) the grant or renewal is precluded by a resolution for the time being having effect under section seventy-five or section seventy-six of the principal Act; or
- (b) by virtue of such a provision of a local Act as is mentioned in the said subsection (1), the use of the premises as a slaughterhouse would be unlawful notwithstanding the grant or renewal of the licence.

(9) As from the date of the passing of this Act—

- (a) the following provisions of the principal Act shall cease to have effect, that is to say—

- (i) in subsection (3) of section seventy-five, except in relation to a resolution under that section passed before the date aforesaid, the words from “and may” to “licence” and the words “or reservation”;

- (ii) subsection (4) of section seventy-five;

- (iii) subsection (2) of section seventy-eight;

- (b) where the operation of any such provision of a local Act as is mentioned in subsection (1) or subsection (6) of this section is dependent upon the provision of a slaughterhouse, and at the date aforesaid that slaughterhouse has not been provided or has ceased to be used as such, that provision of that local Act shall cease to have effect.

3.—(1) Each local authority shall carry out a review of, and, after consultation with such organisations as appear to the authority to represent the interests concerned, submit to the Minister a report on—

Reports on
slaughterhouse
facilities.

- (a) the existing and probable future requirements of their district for slaughterhouse facilities having regard to the needs both of persons requiring the use of such facilities and of other persons; and
- (b) the slaughterhouse facilities which are, or are likely to become, available to meet those requirements (including any port slaughterhouse).

(2) The report aforesaid shall be submitted not earlier than such day as the Minister may by order made by statutory instrument appoint nor later than twelve months (or such longer period as the Minister may in any particular case allow) after

that day, and the day so appointed shall not be earlier than nine months after there have come into force in relation to premises of any one or more classes or descriptions—

(a) construction regulations under section thirteen of the principal Act; and

(b) construction regulations under section two of the Act of 1954,

being in each case regulations made after the passing of this Act.

(3) The report aforesaid shall include—

(a) such particulars as the Minister may direct of any premises in the authority's district for the time being used as a slaughterhouse, including any port slaughterhouse, specifying separately—

(i) premises which already comply with all the requirements of all construction regulations for the time being in force in relation to premises of any one or more classes or descriptions, being regulations made under section thirteen of the principal Act or under section two of the Act of 1954;

(ii) premises which do not so comply but which the authority expect will so comply by the date recommended by the authority in pursuance of paragraph (d) of this subsection;

(iii) premises which the authority expect will not so comply by that date;

(b) such particulars as the Minister may direct of any premises in the authority's district which are not for the time being being used as a slaughterhouse but in respect of which—

(i) a slaughterhouse licence is or has been in force; and

(ii) an application for the renewal or grant of such a licence is outstanding or can still be made before the expiration of twelve months from the date when the licence referred to in the foregoing sub-paragraph ceases or ceased to be in force;

(c) such particulars as the Minister may direct of any application for the grant of a new slaughterhouse licence which is outstanding at the date of the submission of the report;

(d) the authority's recommendation as to the date which the Minister should fix for the requirements aforesaid to come into force in relation to all slaughterhouses in their district;

(e) such other matters, if any, as the Minister may either generally or in any particular case direct:

Provided that where such an application as is referred to in paragraph (c) of this subsection is received too late for the inclusion of the required particulars in the body of the report those particulars shall be submitted separately at the same time as, and be deemed to form part of, the report.

(4) On submitting their report to the Minister, the local authority shall make copies thereof available during reasonable hours at some convenient place or places in their district for inspection by any person without charge or for supply to any person applying therefor subject, if the authority think fit, to the payment by that person of such sum not exceeding five shillings as the authority may determine, and shall cause to be published in one or more local newspapers circulating in their district a notice that the report has been submitted, specifying the place or places at which and the hours during which copies thereof are available for inspection or supply, and stating that representations with respect thereto may be made to the Minister at any time before the expiration of the period of two months commencing with the date of the first publication of the notice; and a copy of the said notice shall be served by the authority—

- (a) on every person other than the authority who is the occupier of any premises such as are referred to in paragraph (a) or paragraph (b) of subsection (3) of this section; and
- (b) on every other person by whom an application for the grant or renewal of a slaughterhouse licence has been made to them between the passing of this Act and the expiration of the period aforesaid.

(5) The local authority shall forward immediately to the Minister a copy—

- (a) of any application for the grant of a new slaughterhouse licence which is received by them after the submission of their report but before the expiration of the period aforesaid; and
- (b) of any application for the grant or renewal of a slaughterhouse licence in respect of premises included in their report by virtue of paragraph (b) of subsection (3) of this section which is received by them after the submission of the report but before the expiration of the twelve months referred to in that paragraph.

(6) After considering any representations with respect to the report made to him before the expiration of the period of two months aforesaid and any application of which a copy is forwarded to him under the last foregoing subsection before the expiration of that period, and, if he thinks fit, after causing a local inquiry to be held, the Minister shall accept the report subject to such observations thereon as he may think fit to attach thereto, including, if it appears to him expedient, a direction that the report

shall be deemed to include, in addition to the particulars of applications included or deemed to be included by virtue of subsection (3) of this section, such particulars of such, if any, of any applications for the grant of a new slaughterhouse licence of which copies have been forwarded to him as aforesaid as he may specify; and the local authority shall—

- (a) make copies of the report and observations available during reasonable hours at some convenient place or places in their district for inspection by any person without charge or for supply to any person applying therefor subject, if the authority think fit, to the payment by that person of such sum not exceeding five shillings as the authority may determine; and
- (b) cause to be published in one or more local newspapers circulating in their district a notice that the report has been accepted, specifying the place or places at which and the hours during which copies of the report and observations are available for inspection or supply.

(7) Paragraph (c) of, and the proviso to, subsection (3), paragraph (b) of subsection (4) and subsection (5) of this section shall not apply in relation to any application to which subsection (1) of section two of this Act applies.

Grant of new slaughterhouse licences after submission of report.

4.—(1) After the submission of their report to the Minister under the last foregoing section, a local authority shall not grant a new slaughterhouse licence except—

- (a) on an application included in that report, either as submitted to or as accepted by the Minister, or deemed by virtue of subsection (3) or subsection (6) of that section to be so included;
- (b) in respect of premises to which such an application as aforesaid related, not being an application refused by the authority under subsection (1) of section six of this Act, but on a fresh application by a person who is the successor in title to those premises or the site thereof of the person by whom the first-mentioned application was made, being a fresh application made within twelve months from the date of the acceptance of the report aforesaid by the Minister or within six months from the date when the person by whom the first-mentioned application was made ceased, whether by reason of his death or for any other reason, to be entitled to occupy those premises or the site thereof, whichever period expires the later;
- (c) by virtue of a direction under paragraph (b) of subsection (3) of section two of this Act; or
- (d) on an application approved by the Minister under subsection (2) of this section.

(2) Where a local authority receive an application for a new slaughterhouse licence after the submission of their report aforesaid, being an application to which subsection (5) of section three of this Act does not apply and which cannot be granted unless the application is approved by the Minister under this subsection, the provisions of the First Schedule to this Act shall have effect, and the Minister—

- (a) if he is not satisfied that the grant of the licence is necessary for the purpose of securing adequate slaughterhouse facilities or expedient for special reasons, shall direct the authority to refuse the application forthwith; or
- (b) if he is satisfied as aforesaid, shall inform the local authority and the applicant that he approves the application;

and the local authority shall comply with any direction given under paragraph (a) of this subsection.

(3) Where in the case of an application of which a copy has been forwarded to the Minister by a local authority under subsection (5) of section three of this Act, being an application for the grant of a new slaughterhouse licence, the Minister determines not to give such a direction as is mentioned in subsection (6) of that section, he shall direct the authority to refuse the application forthwith, and the authority shall comply with that direction.

5.—(1) Where in the case of an application for the grant or renewal of a slaughterhouse licence in respect of any premises received by a local authority after the date of the passing of this Act, being an application—

Isolation of slaughterhalls from dwellings.

- (a) for the grant of a new slaughterhouse licence; or
- (b) in respect of premises in respect of which a new slaughterhouse licence has been granted since the said date; or
- (c) in respect of premises in the case of which a holder of a slaughterhouse licence in respect of those premises has been convicted of an offence by virtue of subsection (2) of this section,

it appears to the authority that the proposed slaughterhall forms part of a building another part of which, being a part within the curtilage of those premises, is, or is proposed to be, used or adapted for use as a dwelling, then, subject to subsection (2) of section six of this Act, the authority shall refuse the application forthwith unless they are satisfied that, if the licence is granted or renewed, no part of that building within the curtilage of those premises will be used as a dwelling at any time while the licence is in force.

(2) Where after the date of the passing of this Act a slaughterhouse licence is in force in respect of any premises, then, if any person causes or permits to be used as a dwelling any part of a building which contains a slaughterhall, being a part within the

curtilage of those premises, he shall be guilty of an offence under the principal Act:

Provided that this subsection shall not apply if that part has been appropriated as a dwelling continuously since before the date aforesaid and no application to which the foregoing subsection applies has been made in respect of those premises since that date.

(3) If a person convicted of an offence by virtue of the last foregoing subsection is the holder of a slaughterhouse licence in respect of the premises in question, the court may, in addition to any other punishment, cancel the licence.

(4) It shall be the duty of every local authority to enforce and execute in their district the provisions of subsection (2) of this section; and sections one hundred and eighteen to one hundred and twenty of the principal Act (which relate to appeals) shall apply for the purposes of this section as if this section were contained in that Act.

(5) In this section the expression "slaughterhall" means that part of a slaughterhouse in which the actual slaughtering of any animal or the dressing of carcases takes place.

Special
grounds for,
and appeals
against, certain
refusals.

6.—(1) In the case of an application—

- (a) with respect to which a direction is given by the Minister under paragraph (b) of subsection (3) of section two of this Act; or
- (b) included in a local authority's report as accepted by the Minister under section three of this Act or deemed by virtue of subsection (3) or subsection (6) of that section to be so included; or
- (c) approved by the Minister under subsection (2) of section four of this Act; or
- (d) for the grant or renewal of a slaughterhouse licence in respect of premises in respect of which such a licence has ceased to be in force less than twelve months before the date when the application is made or ceases to be in force on or after that date,

being an application to which subsection (2) of section one of this Act applies, the local authority shall refuse the application upon its appearing to them, at any time after the expiration of twelve months from the date of the direction, acceptance, approval or cessation, as the case may be, and before the premises to which the application relates are represented by the applicant as ready for use as a slaughterhouse under the licence or renewed licence, either—

- (i) that the applicant has failed to take reasonable steps to secure the making of progress with the preparation of the premises for such use; or

(ii) that the applicant will be unable, or has abandoned his intention, to use those premises as a slaughterhouse; and, for the purposes of this subsection, such a fresh application as is referred to in paragraph (b) of subsection (1) of section four of this Act shall be deemed to have been included in the local authority's report as accepted by the Minister under section three of this Act.

(2) The document notifying the refusal of an application under the foregoing subsection or under subsection (1) of section five of this Act shall state the grounds therefor, and the applicant may appeal against the refusal to a magistrates' court, and that court, if satisfied that the local authority acted unreasonably in refusing the application on those grounds, may declare the refusal to be of no effect; and sections one hundred and seventeen and one hundred and eighteen of the principal Act shall apply for the purposes of any appeal under this subsection as if this subsection were contained in that Act.

(3) Without prejudice to the last foregoing subsection, no appeal to a magistrates' court shall lie under subsection (3) of section sixty-six of the principal Act against a refusal—

- (a) in pursuance of subsection (1) of this section;
- (b) in pursuance of subsection (2) of section two of this Act;
- (c) in pursuance of a direction under paragraph (a) of subsection (3) of the said section two;
- (d) with the consent of the Minister given by virtue of paragraph (i) of subsection (4) of the said section two;
- (e) in pursuance of subsection (8) of the said section two;
- (f) in pursuance of a direction under paragraph (a) of subsection (2) of section four of this Act or under subsection (3) of that section; or
- (g) in pursuance of subsection (1) of section five of this Act.

Regulation of slaughterhouses and knackers' yards

7. In subsection (1) of section one hundred and fifty-one of the Factories Act, 1937 (which relates to the interpretation of the expression "factory" for the purposes of that Act), at the end of paragraph (c) there shall be inserted the words "or

(d) the slaughtering of cattle, sheep, swine, goats, horses, asses or mules; or

(e) the confinement of such animals as aforesaid while awaiting slaughter at other premises, in a case where the place of confinement is available in connection with those other premises, is not maintained primarily for agricultural purposes within the meaning of the Agriculture Act, 1947, or, as the case may be, the Agriculture (Scotland) Act, 1948, and does not form part of premises used for the holding of a market in respect of such animals".

Safety, health and welfare of persons employed in slaughterhouses and knackers' yards.

Amendment
of Slaughter
of Animals
Acts, 1933
to 1954.

8.—(1) For so much of subsection (1) of section one of the Slaughter of Animals Act, 1933, as precedes the proviso to that subsection there shall be substituted the following:—

“ No animal to which this Act applies shall, in a slaughterhouse or knacker's yard, be slaughtered otherwise than instantaneously by means of a mechanically-operated instrument in proper repair unless—

(a) by stunning, effected by means of a mechanically-operated instrument or an instrument for stunning by means of electricity, being in either case an instrument in proper repair, it is instantaneously rendered insensible to pain until death supervenes; or

(b) by such other means as may, by regulations made by the Minister of Agriculture, Fisheries and Food, after consultation with such organisations as appear to him to represent the interests concerned, be authorised for use in the case of all animals to which this Act applies, or a class of such animals to which the animal slaughtered belongs, and in all slaughterhouses or knackers' yards or slaughterhouses or knackers' yards of a class to which belongs the slaughterhouse or knacker's yard in which the animal is slaughtered, it is rendered insensible to pain until death supervenes, and there are complied with such conditions (if any) as may, by regulations so made, be expressed to be applicable to the use of those means in the case of all animals to which this Act applies or such a class of animals as aforesaid and in all slaughterhouses or knackers' yards or such a class of slaughterhouses or knackers' yards as aforesaid ”.

(2) Regulations made by virtue of the foregoing subsection may make such incidental or consequential provision as may appear to the Minister to be necessary or expedient for the purposes of the regulations, including, in particular, in a case where a condition expressed to be applicable to the use of any means of rendering an animal insensible to pain consists in the giving of approval to any matter by a local authority within the meaning of the said Act of 1933, provision for securing a right of appeal to a magistrates' court against a withholding or withdrawal of approval.

(3) Before making any regulations under section two of the Act of 1954 the Minister shall consult with such organisations as appear to him to represent the interests concerned; and, without prejudice to any other power with respect thereto, any such regulations may provide—

- (a) subject to such limitations and safeguards, if any, as may be specified in the regulations, for the appropriate authority to grant in relation to particular premises, either unconditionally or subject to conditions, exemption from the operation of specific provisions of those regulations where it appears to that authority that compliance with those provisions cannot for the time being reasonably be required with respect to the premises or any activities carried on thereat;
- (b) for the regulations to come into force on different days fixed by, or by an order to be made by statutory instrument under, those regulations in respect of different classes or descriptions of premises and different areas, and for different provisions to come into force on different days;

and in paragraph (a) of this subsection the expression "appropriate authority", except in relation to a slaughterhouse provided by a local authority within the meaning of the said Act of 1933, means such a local authority, and in relation to a slaughterhouse so provided means the Minister.

(4) The Slaughter of Animals Acts, 1933 to 1954, shall have effect subject to the amendments specified in the Second Schedule to this Act (being amendments consequential on the provisions of subsection (1) of this section, or of a minor nature, or expedient for the purpose of facilitating the consolidation of those Acts, this section and subsection (1) of the next following section).

9.—(1) Any regulations made under or by virtue of any provision of this Act shall be made by statutory instrument and be subject to annulment in pursuance of a resolution of either House of Parliament.

Additional provisions with respect to certain regulations and byelaws.

(2) Without prejudice to any other power with respect thereto, any regulations made with respect to slaughterhouses or knackers' yards under section thirteen of the principal Act may include provision for the regulations to come into force on different days fixed by, or by an order to be made by statutory instrument under, those regulations in respect of different classes or descriptions of premises and different areas, and for different provisions to come into force on different days.

(3) For the purposes of any regulations made under section thirteen of the principal Act, section one hundred and three and subsections (1) and (3) of section one hundred and five of the principal Act (which relate respectively to the powers of entry of the Minister's officers for the purpose of ascertaining whether there is or has been any contravention of the provisions of any regulations made under the principal Act which the Minister is empowered to enforce and to persons obstructing the exercise of

such powers) shall have effect as if the Minister as well as the local authority were empowered to enforce those regulations so far as they apply to any slaughterhouse or knacker's yard.

(4) If a person convicted of an offence against any regulations made with respect to slaughterhouses or knackers' yards under section thirteen of the principal Act is the holder of a licence under Part IV of that Act in respect of the premises where the offence was committed, the court may, in addition to any other punishment, cancel that licence; and sections one hundred and eighteen to one hundred and twenty of the principal Act shall apply for the purposes of this subsection as if this subsection were contained in that Act.

(5) In subsection (3) of section sixty-eight of the principal Act (which provides that, if a person convicted of an offence against any byelaw made under that section holds a licence under Part IV of that Act, the court may cancel the licence) after the word "Act" there shall be inserted the words "in respect of the premises where the offence was committed".

Miscellaneous and general

Grants for
meat
inspection at
slaughter-
houses.

10. The Minister may by regulations approved by the Treasury provide for the making by him of contributions towards the expenses incurred by a local authority in carrying out at slaughterhouses their functions with respect to the inspection of meat prepared for sale for human consumption in cases where the Minister is satisfied that, by reason of the extent to which the meat appears to him to exceed in quantity what it appears to him should be regarded as required for consumption in the authority's district, those expenses impose an unduly heavy burden on the ratepayers of that district.

Local
inquiries.

11. Subsections (1) to (5) of section two hundred and ninety of the Local Government Act, 1933 (which relate to local inquiries) shall apply for the purposes of this Act and Part IV of the principal Act as if in those subsections—

(a) any reference to the said Act of 1933 included a reference to this Act and to the said Part IV; and

(b) any reference to a department were a reference to the Minister.

Financial
provisions.

12.—(1) There shall be defrayed out of moneys provided by Parliament any expenses incurred under this Act by any government department and any increase attributable to the provisions of this Act in the sums payable out of moneys so provided under Part I of the Local Government Act, 1948, or the Local Government (Financial Provisions) (Scotland) Act, 1954, as amended by the Valuation and Rating (Scotland) Act, 1956.

(2) Subsection (5) of section seventy-eight of the principal Act (which empowers the Minister to make grants out of moneys provided by Parliament to a local authority of an amount not exceeding one-half of any sums payable by that authority by way of compensation for the closure of a private slaughterhouse in consequence of a resolution under section seventy-five of that Act) is hereby repealed except in relation to any such resolution passed before the tenth day of May, nineteen hundred and fifty-six.

13.—(1) In this Act, except where the context otherwise requires, Interpretation, the following expressions have the following meanings respectively, etc. that is to say—

“ the Act of 1954 ” means the Slaughter of Animals (Amendment) Act, 1954;

“ construction regulations ” means regulations with respect to the construction, lay-out or equipment of premises used as a slaughterhouse;

“ knacker’s yard ” has the meaning assigned by subsection (1) of section one hundred and thirty-five of the principal Act;

“ local authority ” has the meaning assigned by section eighty-five of the principal Act and, in relation to, or to an application in respect of, any premises, means the local authority within whose district those premises are situated;

“ the Minister ” means the Minister of Agriculture, Fisheries and Food;

“ new ”, in relation to a slaughterhouse licence, means in respect of premises in respect of which such a licence was not in force at, or at any time less than twelve months before, the date when the application for the licence was made;

“ port slaughterhouse ” means a slaughterhouse forming part of an imported animals’ wharf or landing place approved by the Minister under the Diseases of Animals Act, 1950, for the purpose of the landing of imported animals;

“ the principal Act ” means the Food and Drugs Act, 1955;

“ public slaughterhouse ” means a slaughterhouse provided by a local authority;

“ slaughterhouse ” and “ slaughterhouse licence ” have the meanings respectively assigned by subsection (1) of section one hundred and thirty-five of the principal Act;

“slaughterhouse facilities” has the meaning assigned by subsection (2) of section seventy of the principal Act:

Provided that this subsection, other than the definitions of the Act of 1954, of the Minister and of the principal Act, shall not apply to section eight of, or the Second Schedule to, this Act.

(2) Where, in the case of any two or more local authorities, their functions with respect to the licensing of slaughterhouses fall for the time being to be discharged by a joint board, then, in relation to those authorities, any reference in sections one to six of, or in the First Schedule to, this Act to a local authority shall be construed as a reference to that joint board.

(3) Section two hundred and eighty-five of the Public Health Act, 1936 (which relates to the service of notices) shall apply to any notice or other document required or authorised by this Act to be given to or served on any person.

(4) Save where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by or under any subsequent enactment, including this Act.

Provisions
relating to
London.

14.—(1) Sections one to six of this Act shall not extend to the administrative county of London.

(2) In the application to the administrative county of London of subsection (4) of section nine of this Act, for the reference therein to Part IV of the principal Act there shall be substituted a reference to sections one hundred and forty-four and one hundred and forty-five of the Public Health (London) Act, 1936.

(3) For the purposes of any regulations with respect to slaughterhouses or knackers' yards under section thirteen of the principal Act, the Metropolitan Cattle Market shall be deemed to be within the City of London and not to be within the metropolitan borough of Islington.

(4) The repeal of subsections (1) to (3) of section one of the Act of 1954 effected by subsection (1) of section one hundred and thirty-six of the principal Act shall not extend to the administrative county of London.

Short title, and
extent.

15.—(1) This Act may be cited as the Slaughterhouses Act, 1958.

(2) Except for section seven, subsection (1) of section twelve and subsection (4) of section thirteen, this Act shall not extend to Scotland.

(3) This Act shall not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Sections 2, 4, 13.

PROVISIONS WITH RESPECT TO REFERENCE OF CERTAIN
APPLICATIONS TO MINISTER

1. The provisions of this Schedule shall have effect where a local authority—

- (a) in pursuance of subsection (2) of section two of this Act are required or determine to submit an application to the Minister; or
- (b) receive an application to which subsection (2) of section four of this Act applies.

2. The local authority shall forthwith—

- (a) send a copy of the application to the Minister; and
- (b) cause to be published in one or more local newspapers circulating in their district a notice giving particulars of the application and stating that representations with respect thereto may be made to the Minister within the period of one month commencing with the date of the first publication of the notice; and
- (c) give notice in writing to the applicant of the date of expiry of the period aforesaid stating that any representations by him must be made to the Minister before that date.

3. Before making his determination with respect to the application, the Minister shall consider any representations made to him as aforesaid and consult the local authority by whom the copy of the application was sent to him and any other local authority who appear to him to be affected, and may, if he thinks fit, cause a local inquiry to be held.

SECOND SCHEDULE

Sections 8, 13.

MINOR AMENDMENTS OF SLAUGHTER OF ANIMALS ACTS, 1933 TO 1954

The Slaughter of Animals Act, 1933

(23 & 24 Geo. 5. c. 39)

1. In section three (which prohibits the slaughter or stunning in a slaughterhouse or knacker's yard of animals as defined by the Act except by licensed slaughtermen)—

- (a) in subsection (1), for the words "No animal" there shall be substituted the words "No animal to which this Act applies";
- (b) in subsection (5), after the word "operation" there shall be inserted the words "within their area"; and
- (c) subsection (8) shall be omitted.

2. In section six (which empowers a local authority who have provided or established a slaughterhouse to employ persons to slaughter or stun animals as defined by the Act in accordance with the provisions thereof)—

- (a) for the word "animals" there shall be substituted the words "animals to which this Act applies";
- (b) without prejudice to subsection (1) of section seventy-three of the principal Act, the words from "and" onwards (which empower the making of charges for the services of persons so employed) shall cease to have effect except in relation to the administrative county of London.

2ND SCH.
—cont.

3. In subsection (1) of section seven (which, as amended by the Act of 1954, enables medical officers of health and other officers to enter slaughterhouses and knackers' yards for the purpose of ascertaining whether there is a contravention of the provisions of the Act or of any regulations under section two of the Act of 1954)—

(a) the reference to the provisions of the Act shall be construed as including a reference to the provisions of any regulations made by virtue of subsection (1) of section eight of this Act; and

(b) for the words from "shall refuse to permit" to "under this Act" where last occurring there shall be substituted the words "obstructs a person in the exercise of his powers under the foregoing provisions of this subsection".

4. In subsection (1) of section eight (which relates to the enforcement of the provisions of the Act)—

(a) references to the provisions of the Act shall be construed as including references to the provisions of any regulations made by virtue of subsection (1) of section eight of this Act or under section two of the Act of 1954; and

(b) for the word "enforce" there shall be substituted the words "execute and enforce".

5. After section eight there shall be inserted the following section:—

"8A. The animals to which this Act applies are horses, cattle, sheep, swine and goats."

6. In section nine (which relates to interpretation)—

(a) the definitions of "animal" and "mechanically-operated instrument" shall be omitted;

(b) in the definition of "contravention" the reference to any provision of the Act shall be construed as including a reference to any provision of any regulations made by virtue of subsection (1) of section eight of this Act or under section two of the Act of 1954; and

(c) after the last-mentioned definition there shall be inserted the following definition:—

" 'Horse' includes ass and mule ".

The Slaughter of Animals (Pigs) Act, 1953

(1 & 2 Eliz. 2. c. 27)

7. In section one (which prescribes conditions for the slaughter of certain pigs elsewhere than in slaughterhouses or knackers' yards)—

(a) in paragraph (b) the words "or stunning" shall be omitted;

(b) at the end of paragraph (b) there shall be added the words "and

(c) any such stunning shall be effected by means of a mechanically-operated instrument or an instrument for stunning by means of electricity, being in either case an instrument in proper repair; "

(c) for the word "pig", in both places where it occurs, there shall be substituted the word "swine".

8. In subsection (1) of section three (which relates to interpretation) the definitions of "mechanically-operated instrument" and "pig" shall be omitted.

2ND SCH.
—cont.

The Slaughter of Animals (Amendment) Act, 1954

(2 & 3 Eliz. 2. c. 59)

9. In subsection (1) of section two (which empowers the Minister to make regulations for securing humane conditions and practices in connection with the slaughter of animals, as defined by section nine of the Slaughter of Animals Act, 1933, at slaughterhouses and knackers' yards)—

(a) for the words "the slaughter of animals at slaughterhouses and knackers' yards" there shall be substituted the words "the slaughter, at slaughterhouses and knackers' yards, of animals to which the Slaughter of Animals Act, 1933, applies"; and

(b) for the word "animals", in the second and third places where it occurs, there shall be substituted the words "such animals as aforesaid".

10. In subsection (5) of section three, for the words "revoke or suspend the operation of such a" there shall be substituted the words "revoke any such licence granted by them or suspend the operation within their district of any such".

11. In section four (which extends subsection (1) of section one of the Slaughter of Animals Act, 1933), subsection (1) shall cease to have effect.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Slaughter of Animals Act, 1933	23 & 24 Geo. 5. c. 39.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 49.
Public Health (London) Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 50.
Factories Act, 1937... ..	1 Edw. 8 & 1 Geo. 6. c. 67.
Agriculture Act, 1947	10 & 11 Geo. 6. c. 48.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Agriculture (Scotland) Act, 1948	11 & 12 Geo. 6. c. 45.
Diseases of Animals Act, 1950	14 Geo. 6. c. 36.
Slaughter of Animals (Pigs) Act, 1953	1 & 2 Eliz. 2. c. 27.
Local Government (Financial Provisions) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 13.
Slaughter of Animals (Amendment) Act, 1954	2 & 3 Eliz. 2. c. 59.
Food and Drugs Act, 1955	4 & 5 Eliz. 2. c. 16.
Valuation and Rating (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 60.

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